

24STLC09540 24STLC09540

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-30

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Case Number: 24STLC09540 Hearing Date: July 30, 2026 Dept: 26

TENTATIVE RULING:

Plaintiffs

Melvin Anthony Hanible, Jr. and Jeremy Jamar White's Motion to Vacate Dismissal is granted. The dismissal entered on 06/30/2026 is hereby vacated.

Order

to Show Cause Re: Failure to File Proof of Service of Summons and Complaint is scheduled for 08/27/2026 at 09:30 AM in Department 26 at the Spring Street Courthouse.

Analysis:

Plaintiffs Melvin Anthony Hanible, Jr. and Jeremy Jamar

White ("Plaintiffs") filed the instant action for motor vehicle negligence against Defendant Edgardo Melgard ("Defendant") on December 31, 2024. Following Plaintiffs' failure to appear for trial on June 30, 2026, the Court dismissed the action without prejudice. (Minute Order, 06/30/26.)

Plaintiffs filed the instant Motion to Vacate Dismissal on July 1, 2026. No opposition has been filed to date.

Discussion

The

Motion is brought pursuant to Code of Civil Procedure, section 473, subdivision (b). Under this statute, an application for relief must be made no more than six months after entry of the order from which relief is

sought and must be accompanied by an affidavit of fault attesting to the party or attorney's mistake, inadvertence, surprise or neglect. (Code Civ. Proc., § 473, subd. (b); English v. IKON Business Solutions (2001) 94 Cal.App.4th 130, 143.) A timely request for relief from an entry of default, default judgment, or involuntary dismissal, based on attorney fault, must be granted. (Code Civ. Proc., § 473, subd. (b).)

Plaintiffs

timely filed the Motion one day after dismissal of the action and included an attorney affidavit of fault explaining that Plaintiff's counsel failed to appear due to a calendaring error. (Motion, Fu Decl., ¶¶5-6.) Based on the timely request for relief and supporting attorney affidavit of fault, the case must be reinstated pursuant to Code of Civil Procedure section 473, subdivision (b).

Conclusion

Plaintiffs

Melvin Anthony Hanible, Jr. and Jeremy Jamar White's Motion to Vacate Dismissal is granted. The dismissal entered on 06/30/2026 is hereby vacated.

Order

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Moving party to give notice.